

Community Guide to the Findings and Conditions

Separate review of the April 14 ZA NOD and the July 1 CPC NOD
ZCOA2026-0013 | ZA2026-0024 / ZBA2026-0001

How to read this guide

This unofficial guide separates the two decisions for clarity. Each item is listed in decision order. **No error identified** means the finding or condition is a correct definition, factual observation, report of testimony, disclaimer, or enforceable requirement, and the filed appeal does not identify a separate evidence error in that item. **Appealable error identified** means the filed appeal challenges the record support, completeness, enforceability, or legal sufficiency of the finding/condition. It does not mean the issue has already been decided in the appellants' favor.

This document summarizes already-filed appeal material. It does not add evidence or replace the official record.

I. ZA NOD — April 14, 2026

ZA decision structure: 12 findings and 3 conditions. The appeal identifies substantive evidence errors in 9 findings. Findings 5, 8, and 12 are correctly stated but do not independently establish the substantive CUP approval criteria.

ZA finding	Status	Why / appeal relevance
1. Church and incidental facilities request	Appealable error identified	The appeal challenges project scope: the record still depicts/describes school/daycare and educational uses, which the appeal argues were not merely incidental and were not removed through amended stamped drawings.
2. Site adequate in size and shape	Appealable error identified	3.9 acres and no variance do not independently prove adequate parking, access, traffic capacity, drainage, fire access, emergency operations, or full-project capacity.
3. Sufficient ingress/egress; no undue traffic congestion or hazards	Appealable error identified	The appeal argues that no completed project-specific traffic analysis supported the required traffic-safety finding; the decision instead anticipated future review and improvements.
4. No adverse neighborhood effect / no serious character conflict	Appealable error identified	The appeal argues the NOD did not reconcile project scale, nearby homes, traffic, drainage, lighting, noise, rural character, and plan policies.
5. Enumerated conditional use	No error identified	Correctly states that the use is listed as conditional. Listing the use does not by itself establish that all separate CUP criteria were met.
6. Applicant intends parking, landscaping, buffers, fencing	Appealable error identified	The appeal argues that an intention is not proof of compliance or enforceable mitigation, and identifies plan-completeness/buffer concerns.
7. Friday service could be moved	Appealable error identified	The appeal argues no binding service time, peak restriction, attendance/vehicle cap, or enforcement mechanism was adopted.
8. Opposition speakers reported traffic concerns	No error identified	Accurate report of opposition testimony. It does not resolve the traffic concern.
9. TIA at building permit; possible road improvements; Friday is outside peak hour	Appealable error identified	The appeal argues a future TIA does not establish a current traffic-safety finding. It also challenges the unsupported assertion that Friday service is outside peak-hour traffic.
10. Conditions protect health, safety, and welfare	Appealable error identified	The appeal identifies unresolved traffic, drainage, emergency-access, lighting, noise, and operating-control issues and argues the conditions were insufficient.
11. Site is in Rural Area of Comprehensive Plan	Appealable error identified	Location is correct, but the appeal argues the NOD did not establish compatibility with the ABC Plan Rural Area policies or North Valley Area Plan.
12. Approval limited; no waiver of other requirements	No error identified	Standard disclaimer, correctly stated. Later permits do not themselves supply evidence for a CUP finding already made.

ZA conditions — April 14, 2026

ZA condition	Status	Why / appeal relevance
1. Construction/trade permits; building limited to submitted footprint	No error identified	Standard, enforceable permit and footprint condition. It does not independently resolve the separate traffic, drainage, emergency-access, or compatibility issues.

ZA condition	Status	Why / appeal relevance
2. Coordinate with Public Works to reduce impervious surface	Condition is valid; does not cure evidence issue	Includes specific guidance concerning paving, depressed drainage area, and pervious materials. The appeal argues it defers rather than demonstrates drainage/hydrology adequacy at CUP approval.
3. No amplified sound or loudspeakers outside	No error identified	Enforceable outdoor-sound restriction. The appeal argues it does not resolve all indoor noise, lighting, traffic, operating-hours, or enforcement concerns.

II. CPC NOD — July 1, 2026

CPC decision structure: 15 findings and 15 conditions. The appeal identifies substantive evidence errors in 9 findings. Findings 2, 6, 9, 10, 12, and 15 are correctly stated factual, definitional, testimony-reporting, jurisdictional, or disclaimer items.

CPC finding	Status	Why / appeal relevance
1. Church and incidental facilities request	Appealable error identified	The appeal challenges unresolved school/daycare scope and the inconsistency between the approval description and drawings/written project materials.
2. CZO definition of church	No error identified	Ordinance definition is accurately quoted; it does not prove all CUP criteria were met.
3. Site adequate in size and shape	Appealable error identified	The appeal challenges site adequacy based on parking, access, traffic, drainage, fire safety, and inconsistent attendance/capacity inputs.
4. Ingress/egress; approach improvements may be required	Appealable error identified	The appeal argues that the CPC did not make the explicit no-undue-traffic-hazards finding and deferred traffic study/improvements.
5. Area has mixed uses; proposal adds to mix	Appealable error identified	The appeal argues this does not establish compatibility with nearby residences, rural character, scale, and applicable plans.
6. Enumerated conditional use	No error identified	Correct zoning observation; it does not itself establish compliance with separate CUP standards.
7. Applicant intends compliance with parking/buffers/fencing	Appealable error identified	The appeal argues that stated intentions and incomplete/inconsistent plans are not enforceable proof of compliance.
8. Friday service could be moved	Appealable error identified	The appeal argues there is no binding operating restriction or enforceable traffic mitigation.
9. Opposition speakers reported traffic concerns	No error identified	Accurate report of testimony; it does not resolve the traffic issue.
10. Opposition speakers reported compatibility concern	No error identified	Accurate report of testimony; it does not resolve compatibility.
11. TIA at building permit; possible road improvements	Appealable error identified	The appeal argues future analysis cannot itself support the traffic finding required at the CUP decision point.
12. Second Street County facility; Alameda NMDOT facility	No error identified	Factual jurisdiction statement.
13. Conditions protect public health, safety, welfare	Appealable error identified	The appeal argues conditions did not establish safety/welfare at approval because key traffic, drainage, emergency-access, and operating questions remained unresolved.
14. Site is in Rural Area of Comprehensive Plan	Appealable error identified	Location is correct, but the appeal argues no compatibility finding was established under the ABC Plan and North Valley Area Plan.
15. Approval limited to requested church use	No error identified	Standard limitation/disclaimer, correctly stated.

CPC conditions — July 1, 2026

CPC condition	Status	Why / appeal relevance
1. School not allowed	Appealable error identified	The appeal asserts that record drawings still show school/daycare space and no amended stamped drawings removed it.
2. Permits and footprint	No error identified	Standard enforceable requirement.
3. 60,000-SF maximum / 43,000-SF footprint	Appealable error identified	The appeal asserts no drawing in the record depicts the 60,000-SF cap. The condition states it was adopted to address traffic/compatibility concerns, but the appeal argues no traffic analysis determined an appropriate size.
4. Coordinate with Public Works on impervious surface	No error identified	Valid, specific condition. It includes depressed drainage area and gravel/pervious-material guidance.
5. No amplified sound outside	No error identified	Valid, enforceable outdoor-sound restriction.

CPC condition	Status	Why / appeal relevance
6. Height limited to 26 feet	Appealable error identified	The appeal asserts no record document identifies building height in feet or establishes compliance with the imposed limit.
7. Parking compliance under Section 21	No error identified	Valid code-compliance condition; it restates parking requirements and references Public Works/Fire review for permeable surfaces.
8. Landscaping under Section 19 / Water Conservation Ordinance	No error identified	Valid code-compliance condition.
9. TIA at building permit; possible road improvements	Appealable error identified	The appeal argues the deferred study is not evidence supporting the prior CUP traffic determination.
10. NMDOT requirements	No error identified	Standard state-highway access/compliance requirement.
11. Six-foot wall/fence at residential perimeter	No error identified	Enforceable buffer condition.
12. Light Pollution Ordinance / Night Sky Protection Act	No error identified	Valid code-compliance condition.
13. Signage under Section 12 / O-1 zone	No error identified	Valid code-compliance condition.
14. Grading/drainage plan at building permit	Condition is valid; does not cure evidence issue	Valid later-stage plan requirement. The appeal argues that deferring drainage analysis does not show, at CUP approval, that impacts were evaluated or that Finding 13 was supported.
15. Noise Ordinance compliance	No error identified	Valid code-compliance condition.

Conclusion

The guide distinguishes an accurate factual statement or enforceable condition from a substantive finding the appeal contends lacks sufficient evidence. The appeal does not dispute that the County can list a use as conditional, report public testimony, state facility jurisdiction, retain later permit requirements, or impose ordinary code-compliance conditions. It disputes whether those matters establish the substantive CUP findings—scope, site adequacy, traffic safety, compatibility, plan compliance, and public welfare—when the approval was made.

This is an unofficial reader's guide to already-filed material; it is not legal advice and does not replace the official record.